

Corporation (2015) 242 Cal.App.4th 651, 660.) In determining a demurrer, a court “may look to affidavits filed on behalf of plaintiff, and the plaintiff’s answers to interrogatories . . . as well as to the plaintiff’s response to request for admissions.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604, internal citations omitted.) The court can “take judicial notice of records such as admissions, answers to interrogatories, affidavits, and the like, when considering a demurrer, only where they contain statements of the plaintiff or his agent which are inconsistent with the allegations of the pleading before the court.” (*Id.* at pp. 604-605, emphasis added.) “The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff.” (*Id.* at p. 605, internal citation omitted.) Furthermore, the court notes that a “defendant’s (or cross-defendant’s) motion for summary judgment tests the existence of evidence to support the complaint’s (or cross-complaint’s) allegations. . . . In a motion for summary judgment, judicial notice or an evidentiary admission or concession by the pleader/adversary can support the motion and thrust the burden on the pleader to come forward with facts in rebuttal. In contrast, in order for judicial notice to support a motion for judgment on the pleadings by negating an express allegation of the pleading, the notice must be of something that cannot reasonably be controverted. The same is true of evidentiary admissions or concessions.” (*Columbia Cas. Co. v. Nw. Nat. Ins. Co.* (1991) 231 Cal.App.3d 457, 468, internal citations omitted; see *ibid.* [the “contrasting treatment of writings incorporated by reference which varies from express allegations of the pleading and the distinction in impact of judicial notice and evidentiary admissions or concessions in motions for summary judgment and motions for judgment on the pleadings . . .”].) Taking all of this into account, Raghani’s arguments based on the deemed admissions are more properly suited for a motion for summary judgment or adjudication, not for judgment on the pleadings.

Line 3

Case Name: *Tiwari v. Kaehr, et al.*

Case No.: 25CV467995

On April 12, 2022, plaintiff Prashant Tiwari (“Plaintiff”) filed a claim with the U.S. Equal Employment Opportunity Commission (“EEOC”) asserting that he was subjected to discrimination on the basis of race and national origin, a hostile work environment, retaliation and failure to prevent discrimination, a hostile work environment and retaliation that occurred most recently on February 8, 2022. On November 14, 2022, Plaintiff filed a demand for arbitration with Judicial Arbitration and Mediation Services Inc. (“JAMS”). After respondents Toyota Motor North America, Inc., Toyota Motor Corporation and Toyota Infotechnology

Center, U.S.A., Inc.’s motions for summary judgment were granted in part, on July 2, 2024, arbitrator Hon. Robert A. Baines entered a final award denying Plaintiff’s claims in their entirety. On August 16, 2024, respondents filed a petition to confirm the arbitration award. On September 5, 2024, Plaintiff filed a petition to vacate the arbitration award. On June 12, 2025, Plaintiff then filed a complaint, again asserting causes of action for discrimination, a hostile work environment, retaliation and failure to prevent discrimination. On July 12, 2025, the Court [Hon. Hayashi] confirmed the arbitration award and denied Plaintiff’s request to set aside the arbitration award and entered judgment. On September 8, 2025, Plaintiff appealed the judgment.

Defendants Toyota Motor North America, Inc., Toyota Infotechnology Center, U.S.A., Inc., Toyota Motor Engineering & Manufacturing North America, Inc., Monte Kaehr, Shannon Cummings and Nick Sitarski (collectively, “Defendants”) demur to the complaint. Plaintiff moves for leave to file a first amended complaint and to compel the deposition of PMKs, Kaehr, Cummings and Sitarski.

Here, it appears that the causes of action of the instant complaint are indeed identical to those asserted in the arbitration. Plaintiff’s arguments in opposition are also the same as those currently being made in the appeal before the Sixth District.

The Court hereby stays this case pending the outcome of the appeal. (See *Bailey v. Fosca Oil Co.* (1963) 216 Cal.App.2d 813, 817 (stating that “the power of a court to stay proceedings in circumstances similar to those presented here was inherent at common law and is now vested in the superior courts of this state... [and may be] necessary to prevent a multiplicity of trials and procedures as to identical issues... the inherent power of a trial court to exercise a reasonable control over all proceedings connected with the litigation before it... should be exercised by the courts in order to insure the orderly administration of justice”); see also *Hernandez v. FCA US LLC* (2020) 50 Cal.App.5th 329, 338 (stating that “[a] court has inherent power to exercise reasonable control over all proceedings connected with the litigation before

it”); see also *Simmons v. Superior Court of Los Angeles County* (1950) 96 Cal.App.2d 119, 130 (stating that “[w]here the rights of the parties to the second action cannot be properly determined until the questions raised in the first action are settled the second action should be stayed... [e]quity abhors a multiplicity of actions... [i]t is the policy of the law to reduce to the minimum the number of actions which may subsist between the same parties”).)

The hearing on Defendants’ motion for sanctions, scheduled for June 16, 2026, Defendants’ demurrer, and Plaintiff’s motion for leave to file an amended complaint and motion to compel depositions are continued to March 9, 2027 at 9:00 a.m.

A case management conference is hereby scheduled for December 8, 2026 at 10:00 a.m. in Department 6 to check the status of the appeal and to determine whether the hearing on the motions needs to be continued further.

Line Item #6

Case Name: *Zhang v. OKBL USA Technology*

Case No.: 25CV482868

BACKGROUND

Defendant OKBL USA Technology Inc. (“Defendant” or “OKX”) is a “cryptocurrency exchange company that operates a digital asset trading platform and markets related financial products and services throughout the United States and across the globe.” (Declaration of Shone Barton [“Barton Decl.”] at ¶ 2.) Plaintiff Yiyi Zhang (“Plaintiff”) was employed by OKX as a Content Product Designer on August 15, 2024. (Complaint at ¶ 53.) As part of the onboarding process, Plaintiff executed an Employment Agreement which included (i) a Confidentiality and Work Product Agreement; and (ii) an Arbitration Agreement. (Barton Decl. at ¶ 6.)

Plaintiff’s employment was terminated on August 1, 2025. (Barton Decl. at ¶ 3.) On December 22, 2025, Plaintiff filed suit against Defendant alleging causes of action for violations